

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Janine Zajac	Team: Team # 1	CCRB Case #: 201301572	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/02/2013 10:30 AM	Location of Incident: § 87(2)(b) 75th Precinct Stationhouse		18 Mo. SOL 9/2/2014		Precinct: 75
Date/Time CV Reported Sat, 03/02/2013 10:30 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Sat, 03/02/2013 7:04 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Henry Henriquez	08780	938657	075 PCT
2. Officers			Unknown
3. An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT George Scott	04669	935715	075 PCT
2. POM Steven Giannitelli	04289	924663	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: On an unknown date, officers entered and searched § 87(2)(b) in Brooklyn.	A . Alleged Victim Uncooperative
B . An officer	Discourtesy: On March 2, 2013, a § 87(2)(b) in Brooklyn, an officer spoke discourteously to § 87(2)(b)	B . Alleged Victim Uncooperative
C . Officers	Abuse: On March 2, 2013 at § 87(2)(b) Brooklyn, officers threatened to arrest § 87(2)(b) and § 87(2)(b)	C . Alleged Victim Uncooperative
D . POM Henry Henriquez	Force: On March 2, 2013, at the 75th Precinct stationhouse, PO Henry Henriquez used physical force against § 87(2)(b)	D . Alleged Victim Uncooperative

Case Summary

No phone numbers were included for § 87(2)(b) in the original complaint. An initial letter was sent to him on March 14, 2013. A Lexis Nexis search produced two additional addresses for § 87(2)(b) but no phone numbers. Letters were sent to the additional addresses on March 18, 2013. An additional complaint from IAB was received on March 15, 2013, which listed § 87(2)(b), § 87(2)(b)'s girlfriend, and included a phone number for her. § 87(2)(b) was reached on March 19, 2013 but she was unable to talk and said she would call back, which she did not. She was reached again on March 25, 2013. She provided § 87(2)(b)'s phone number and gave a few details about the incident but was unable to talk and agreed to call back. § 87(2)(b) was called on March 25, 2013, March 27, 2013 but there was no answer and no voice messaging system. Final letters were sent to § 87(2)(b) on April 27, 2013. § 87(2)(b) was reached on March 29, 2013. He confirmed he received one of the letters sent to him but did not know if he wanted to pursue the complaint and did not schedule an appointment. The letters to the two other addresses for § 87(2)(b) were returned by the USPS. Two additional calls to § 87(2)(b) were made on April 1, 2013 and April 16, 2013, but his number was not in service. A search of the Department of Corrections website on May 9, 2013 confirmed that § 87(2)(b) is not currently or recently incarcerated.

An initial letter was sent to § 87(2)(b) on March 27, 2013. § 87(2)(b) was reached on March 27, 2013 but she was unable to talk and agreed to call back when she could, which she did not. A message was left with the person who answered § 87(2)(b)'s phone on March 29, 2013. A call was made to § 87(2)(b) on April 3, 2013. She details about her complaint but the call was cut off before she finished explaining. When she was called back immediately there was no answer and no voice messaging system. A final letter was sent on April 3, 2013. A final call was made to § 87(2)(b) on April 16, 2013. She finished describing her complaint and she agreed to give § 87(2)(b) the message to call. She scheduled an appointment for April 23, 2013, for which she did not appear. A missed appointment letter was sent on April 25, 2013. § 87(2)(b) was reached on April 25, 2013 and she said she did not want to pursue this complaint. § 87(2)(g)

§ 87(2)(b) it is recommended that this complaint be closed as **victim uncooperative.**

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____

Title/Signature

Print

Date